

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index #
Date of filing:

-----X
DWIGHT GRIMES and ANGELYN CRUZ,

Plaintiffs designate New York
County as the place of trial

Plaintiffs,

Basis of the venue is the Locus
of Occurrence

-against-

THE CITY OF NEW YORK, POLICE OFFICER
THOMAS DOYLE-Shield # 2912, POLICE OFFICER
MATTHEW LISA-Shield # 30655 and JOHN DOES-
Police Officers as yet unidentified,

SUMMONS

Plaintiff, ANGELYN CRUZ
resides at
205 Avenue C, Apt# 23A
New York, New York 10009

Defendants.

-----X

County of New York

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

POLICE OFFICER THOMAS DOYLE-Shield #
2912
c/o New York City Police Department, 9th
Precinct
321 East 5th Street
New York, New York 10003

POLICE OFFICER MATTHEW LISA-Shield #
30655
c/o New York City Police Department, 9th
Precinct
321 East 5th Street
New York, New York 10003

Dated: Brooklyn, New York
April 26, 2022

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
DWIGHT GRIMES and ANGELYN CRUZ,

Index No.:

Plaintiffs,

COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
THOMAS DOYLE-Shield # 2912, POLICE OFFICER
MATTHEW LISA-Shield # 30655 and JOHN DOES-
Police Officers as yet unidentified,

Defendants.

-----X
Plaintiffs, by their attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the
defendants herein, upon information and belief, respectfully show to this Court, and allege as
follows:**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF DWIGHT GRIMES**

1. That at all times hereinafter mentioned, the plaintiff was and still is a resident of the County of Kings, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on August 19, 2021, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter THE CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff, DWIGHT GRIMES, was held on September 23, 2021.

6. That on June 3, 2021, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER THOMAS DOYLE-Shield # 2912, POLICE OFFICER MATTHEW LISA-Shield # 30655 and JOHN DOES-Police Officers as yet unidentified, as police officers, agents, servants and/or employees.

7. That on June 3, 2021, and at all times hereinafter mentioned and upon information and belief, the plaintiff, DWIGHT GRIMES, was lawfully present at or about the intersection of Avenue D and East Houston Street, in the County, City and State of New York.

8. That on June 3, 2021, and at all times hereinafter mentioned and upon information and belief, while at the aforementioned location, the plaintiff, DWIGHT GRIMES, was operating his vehicle when he was approached and removed from his vehicle by the defendant police officers, including, but not limited to POLICE OFFICER THOMAS DOYLE-Shield # 2912 and POLICE OFFICER MATTHEW LISA-Shield # 30655. Due to the defendants' assertions of plaintiff being intoxicated, the plaintiff was subjected to sobriety and breathalyzer tests. The plaintiff was then assaulted and battered. The assault and battery consisted of being grabbed, having his arms twisted, and being forced into handcuffs. Following that, the plaintiff was pulled into a police vehicle and transported to the 25th Precinct, thereafter to the 9th Precinct. At the 9th Precinct, the plaintiff was placed in a holding cell where he was processed, fingerprinted, and photographed. The plaintiff was brought to New York County Central Booking and kept there until his release on June 5, 2021, at approximately 12:00 PM.

9. That on June 3, 2021, and at all times hereinafter mentioned and upon information and belief, plaintiff, DWIGHT GRIMES, was assaulted and battered by defendants, POLICE OFFICER THOMAS DOYLE-Shield # 2912, POLICE OFFICER MATTHEW LISA-Shield # 30655 and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

10. That on June 3, 2021, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

11. That on June 3, 2021, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER THOMAS DOYLE-Shield # 2912, POLICE OFFICER MATTHEW LISA-Shield # 30655 and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, DWIGHT GRIMES, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

12. That on June 3, 2021, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

13. By reason of said assault and battery, the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

14. By the reason of the foregoing, the plaintiff, DWIGHT GRIMES, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF DWIGHT GRIMES**

15. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "14" inclusive with the same force and effect as if more fully set forth at length herein.

16. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER THOMAS DOYLE-Shield # 2912, POLICE OFFICER

MATTHEW LISA-Shield # 30655 and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, DWIGHT GRIMES.

17. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER THOMAS DOYLE-Shield # 2912, POLICE OFFICER MATTHEW LISA-Shield # 30655 and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

18. By the reason of the foregoing, the plaintiff, DWIGHT GRIMES, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF DWIGHT GRIMES**

19. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "18" inclusive with the same force and effect as if more fully set forth at length herein.

20. That on June 3, 2021, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER THOMAS DOYLE-Shield # 2912, POLICE OFFICER MATTHEW LISA-Shield # 30655 and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, DWIGHT GRIMES.

21. That on June 3, 2021, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

22. That as a result of the aforesaid false arrest and confinement, the plaintiff, DWIGHT GRIMES, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

23. By the reason of the foregoing, the plaintiff, DWIGHT GRIMES, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF DWIGHT GRIMES**

24. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "23" inclusive with the same force and effect as if more fully set forth at length herein.

25. That on June 3, 2021, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER THOMAS DOYLE-Shield # 2912, POLICE OFFICER MATTHEW LISA-Shield # 30655 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff, DWIGHT GRIMES.

26. That the defendants, POLICE OFFICER THOMAS DOYLE-Shield # 2912, POLICE OFFICER MATTHEW LISA-Shield # 30655 and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff, DWIGHT GRIMES, against his will and said confinement was not privileged.

27. By the reason of the foregoing, the plaintiff, DWIGHT GRIMES, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF DWIGHT GRIMES**

28. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "27" inclusive with the same force and effect as if more fully set forth at length herein.

29. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER THOMAS DOYLE-Shield # 2912, POLICE OFFICER MATTHEW LISA-

Shield # 30655 and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

30. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, DWIGHT GRIMES.

31. That as a result of said intentional and negligent acts, the plaintiff, DWIGHT GRIMES, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

32. By reason of the foregoing, the plaintiff, DWIGHT GRIMES, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF DWIGHT GRIMES**

33. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "32" inclusive with the same force and effect as if more fully set forth at length herein.

34. That on June 3, 2021, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER THOMAS DOYLE-Shield # 2912, POLICE OFFICER MATTHEW LISA- Shield # 30655 and JOHN DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

35. That on June 3, 2021, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER THOMAS DOYLE-Shield # 2912, POLICE OFFICER MATTHEW LISA- Shield # 30655 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff.

36. That on June 3, 2021, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

37. By reason of the foregoing, plaintiff, DWIGHT GRIMES, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF DWIGHT GRIMES**

38. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "37" inclusive with the same force and effect as if more fully set forth at length herein.

39. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, DWIGHT GRIMES.

40. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER THOMAS DOYLE-Shield # 2912, POLICE OFFICER MATTHEW LISA-Shield # 30655 and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

41. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

42. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER THOMAS DOYLE-Shield # 2912, POLICE OFFICER MATTHEW LISA-Shield # 30655 and JOHN DOES-Police Officers as yet unidentified, routinely commit

constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

43. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER THOMAS DOYLE-Shield # 2912, POLICE OFFICER MATTHEW LISA-Shield # 30655 and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

44. As a direct and proximate result of this unlawful conduct, the plaintiff, DWIGHT GRIMES, sustained the damages hereinbefore alleged.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF DWIGHT GRIMES**

45. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "44" inclusive with the same force and effect as if more fully set forth at length herein.

46. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

47. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER THOMAS DOYLE-Shield # 2912, POLICE OFFICER MATTHEW LISA-Shield # 30655 and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

48. By the reason of the foregoing, the plaintiff, DWIGHT GRIMES, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A NINTH CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF ANGELYN CRUZ**

49. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "48" inclusive with the same force and effect as if more fully set forth at

length herein.

50. That at all times hereinafter mentioned, the plaintiff, ANGELYN CRUZ, was and still is a resident of the County, City and State of New York.

51. That prior hereto on August 19, 2021, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter THE CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

52. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff, ANGELYN CRUZ, was held on September 23, 2021.

53. That on June 3, 2021, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER THOMAS DOYLE-Shield # 2912, POLICE OFFICER MATTHEW LISA-Shield # 30655 and JOHN DOES-Police Officers as yet unidentified, as police officers, agents, servants and/or employees.

54. That on June 3, 2021, and at all times hereinafter mentioned and upon information and belief, the plaintiff, ANGELYN CRUZ, was lawfully present at or about the intersection of Avenue D and East Houston Street, in the County, City and State of New York.

55. That on June 3, 2021, and at all times hereinafter mentioned and upon information and belief, while at the aforementioned location, the plaintiff, ANGELYN CRUZ, a passenger in the vehicle owned and operated by the plaintiff, DWIGHT GRIMES, where she was approached and assaulted and battered by the defendants, police officers, including POLICE OFFICER THOMAS DOYLE-Shield # 2912 and POLICE OFFICER MATTHEW LISA-Shield # 30655. The assault and violence included being seized, jerked out of the car by her arm, shoved against the hood of a police vehicle, illegally touched on her vagina, breast, and buttock by a male police officer, and being forcefully placed in extremely tight handcuffs. The plaintiff was transported to

the 9th Precinct and placed in a holding cell. The plaintiff was processed, fingerprinted, and photographed while at the precinct. The defendants used racial remarks toward her while she was in their custody. The plaintiff requested medical attention, but was denied until she was eventually transferred to Beth Israel Hospital for treatment of her injuries while being restrained in handcuffs and leg shackles to the hospital bed. Following that, the plaintiff was transferred to the New York County Central Booking, where she was kept until her release at around 5:00 PM on June 4, 2021, without seeing a court or being charged with a crime.

56. That on June 3, 2021, and at all times hereinafter mentioned and upon information and belief, plaintiff, ANGELYN CRUZ, was assaulted and battered by defendants, POLICE OFFICER THOMAS DOYLE-Shield # 2912, POLICE OFFICER MATTHEW LISA-Shield # 30655 and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

57. That on June 3, 2021, and at all times hereinafter mentioned and information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

58. That on June 3, 2021, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER THOMAS DOYLE-Shield # 2912, POLICE OFFICER MATTHEW LISA-Shield # 30655 and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, ANGELYN CRUZ, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

59. That on June 3, 2021, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

60. By reason of said assault and battery, the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

61. By the reason of the foregoing, the plaintiff, ANGELYN CRUZ, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TENTH CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF ANGELYN CRUZ**

62. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "61" inclusive with the same force and effect as if more fully set forth at length herein.

63. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER THOMAS DOYLE-Shield # 2912, POLICE OFFICER MATTHEW LISA-Shield # 30655 and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, ANGELYN CRUZ.

64. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER THOMAS DOYLE-Shield # 2912, POLICE OFFICER MATTHEW LISA-Shield # 30655 and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

65. By the reason of the foregoing, the plaintiff, ANGELYN CRUZ, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION FOR
FALSE ARREST ON BEHALF OF ANGELYN CRUZ**

66. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "65" inclusive with the same force and effect as if more fully set forth at length herein.

67. That on June 3, 2021 , and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER THOMAS DOYLE-Shield # 2912, POLICE OFFICER MATTHEW LISA-Shield # 30655 and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, ANGELYN CRUZ.

68. That on June 3, 2021, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

69. That as a result of the aforesaid false arrest and confinement, the plaintiff, ANGELYN CRUZ, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

70. By the reason of the foregoing, the plaintiff, ANGELYN CRUZ, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWELFTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF ANGELYN CRUZ**

71. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "70" inclusive with the same force and effect as if more fully set forth at length herein.

72. That on June 3, 2021 , and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER THOMAS DOYLE-Shield # 2912, POLICE OFFICER MATTHEW LISA-Shield # 30655 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff, ANGELYN CRUZ.

73. That the defendants, POLICE OFFICER THOMAS DOYLE-Shield # 2912, POLICE OFFICER MATTHEW LISA-Shield # 30655 and JOHN DOES-Police Officers as yet

unidentified, while acting within the scope of their employment, intentionally confined the plaintiff, ANGELYN CRUZ, against her will and said confinement was not privileged.

74. By the reason of the foregoing, the plaintiff, ANGELYN CRUZ, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION FOR
INTENTIONAL AND NEGLIGENT INFLICTION OF
EMOTIONAL DISTRESS ON BEHALF OF ANGELYN CRUZ**

75. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "74" inclusive with the same force and effect as if more fully set forth at length herein.

76. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER THOMAS DOYLE-Shield # 2912, POLICE OFFICER MATTHEW LISA-Shield # 30655 and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

77. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, ANGELYN CRUZ.

78. That as a result of said intentional and negligent acts, the plaintiff, ANGELYN CRUZ, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of her person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

79. By reason of the foregoing, the plaintiff, ANGELYN CRUZ, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTEENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF ANGELYN CRUZ**

80. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "79" inclusive with the same force and effect as if more fully set forth at

length herein.

81. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, ANGELYN CRUZ.

82. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER THOMAS DOYLE-Shield # 2912, POLICE OFFICER MATTHEW LISA-Shield # 30655 and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

83. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

84. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

85. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER THOMAS DOYLE-Shield # 2912, POLICE OFFICER MATTHEW LISA-Shield # 30655 and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

86. As a direct and proximate result of this unlawful conduct, the plaintiff, ANGELYN CRUZ, sustained the damages hereinbefore alleged.

**AS AND FOR A FIFTEENTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF ANGELYN CRUZ**

87. The plaintiff repeats and realleges each and every allegation set forth above

numbered "1" through "86" inclusive with the same force and effect as if more fully set forth at length herein.

88. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

89. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER THOMAS DOYLE-Shield # 2912, POLICE OFFICER MATTHEW LISA-Shield # 30655 and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

90. By the reason of the foregoing, the plaintiff, ANGELYN CRUZ, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, DWIGHT GRIMES, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, DWIGHT GRIMES, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, DWIGHT GRIMES, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, plaintiff, DWIGHT GRIMES, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, DWIGHT GRIMES, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, DWIGHT GRIMES, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, DWIGHT GRIMES, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff,

DWIGHT GRIMES, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action;

plaintiff, ANGELYN CRUZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Ninth** Cause of Action; plaintiff,

ANGELYN CRUZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Tenth** Cause of Action; plaintiff,

ANGELYN CRUZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eleventh** Cause of Action; plaintiff,

plaintiff, ANGELYN CRUZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twelfth** Cause of Action; plaintiff,

ANGELYN CRUZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Thirteenth** Cause of Action;

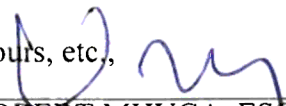
plaintiff, ANGELYN CRUZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourteenth** Cause of Action;

plaintiff, ANGELYN CRUZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifteenth** Cause of Action

together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
April 26, 2022

Yours, etc.,



ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiffs
DWIGHT GRIMES
ANGELYN CRUZ
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020
File No.: 21DG06-03

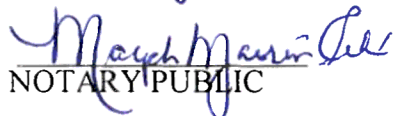
INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

DWIGHT GRIMES, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing **COMPLAINT** and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.


DWIGHT GRIMESSworn to before me this 4th
of May 2022
NOTARY PUBLIC

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-2023

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

ANGELYN CRUZ, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.


ANGELYN CRUZ

Sworn to before me this 28th
of April 2022


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